

SENATE BILL NO. 114

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A BILL FOR AN ACT ENTITLED: "AN ACT REQUIRING THE DISPLAY OF THE TEN COMMANDMENTS IN EACH PUBLIC SCHOOL BUILDING AND CLASSROOM; PROVIDING SPECIFICATIONS FOR THE TEXT AND THE DISPLAY OF THE TEN COMMANDMENTS; AUTHORIZING A DISTRICT TO SPEND ITS OWN FUNDS OR DONATED FUNDS TO PROVIDE THE DISPLAYS OR TO ACCEPT DONATED DISPLAYS ; EXCLUDING THE DISPLAY OF THE TEN COMMANDMENTS FROM THE PROHIBITION AGAINST DISTRIBUTION OF SECTARIAN OR DENOMINATIONAL PUBLICATIONS IN A PUBLIC SCHOOL; AMENDING SECTION 20-7-112, MCA; AND PROVIDING AN EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Required display of ten commandments. (1) The trustees of a district shall display the ten commandments in each school building and in each classroom of each school in the district.

(2) The ten commandments must be displayed on a poster or framed document that is a minimum size of 11 inches by 14 inches. The text of the ten commandments must be the central focus of the poster or framed document and must be printed in a large, easily readable font.

(3) The text of the display must read as follows:

"THE TEN COMMANDMENTS

I AM the LORD thy God, thou shalt have no other gods before me.

Thou shalt not make to thyself any graven images.

Thou shalt not take the Name of the Lord thy God in vain.

Remember the Sabbath day, to keep it holy.

Honor thy father and thy mother, that thy days may be long upon the land which the Lord thy God giveth thee.

1 Thou shalt not kill.

2 Thou shalt not commit adultery.

3 Thou shalt not steal.

4 Thou shalt not bear false witness against thy neighbor.

5 Thou shalt not covet thy neighbor's house. Thou shalt not covet thy neighbor's wife, nor his
6 manservant, nor his maidservant, nor his cattle, nor anything that is thy neighbor's."

7 (4) A school district is authorized but not required to spend its funds to purchase displays. A school
8 district may accept donated funds to purchase displays and may accept donated displays.

9

10 **Section 2.** Section 20-7-112, MCA, is amended to read:

11 **"20-7-112. Sectarian publications prohibited -- religious materials allowed -- prayer permitted.**

12 (1) (a) A publication of a sectarian or denominational character may not be distributed in any school. Instruction
13 may not be given advocating sectarian or denominational doctrines.

14 (b) This subsection (1) does not prohibit:

15 (i) a school library from including the Bible or other religious material having cultural, historical, or
16 educational significance;

17 (ii) the display of the ten commandments in each classroom as required by [section 1];

18 ~~(ii)~~(iii) a ~~pupil~~student from reading from the Bible or other religious material during free reading time;

19 or

20 ~~(iii)~~(iv) a student from initiating or participating in a conversation about religion, religious beliefs, or
21 religious practices, with another student or a teacher.

22 (c) If a school, class, or course has requirements for self-selected reading, a ~~pupil~~student must be
23 allowed to read from the Bible or other religious material to meet those requirements.

24 (2) Prayer is permitted in a school, on school grounds, and at school-sponsored events, but a
25 person may not be compelled to pray. The school day may begin with a prayer."

26

27 NEW SECTION. **Section 3. Codification instruction.** [Section 1] is intended to be codified as an
28 integral part of Title 20, chapter 7, part 1, and the provisions of Title 20, chapter 7, part 1, apply to [section 1].

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